

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD., *Respondent*.

DOCKET NO. 24-23

Served: March 13, 2026

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

THIRD AMENDED SCHEDULING ORDER

On March 11, 2026, the parties filed a joint motion for extension of time. Dkt. 48. The motion seeks a 60-day extension to the scheduling order, citing the “extensive and ongoing document production and expansive scope of fact and expert deposition practice in this matter.” Mot. for Extension 2.

At the discovery conference on January 29, 2026, in response the parties’ representations regarding the difficulty of taking the necessary depositions in the time allotted by the discovery schedule, I instructed the parties to begin depositions in accordance with their plan, which I agreed was aggressive, and to report back on their progress once they had a better sense of how much additional time they might actually need. I also instructed them to continue trying to resolve the outstanding discovery disputes we discussed at that conference, with the aim of avoiding unnecessary motions that would delay the process.

In the joint motion, the parties represent that they continue to work through their disputes, which has resulted in the production of additional documents, many of which are in Korean and require translation. They also represent that, of the planned 35 depositions, they anticipate having completed 14 by the current deadline of March 31, 2026. Mot. for Extension 3. And while noting that some of the remaining depositions are complicated by logistics, with witnesses located in Korea, New Zealand, and elsewhere, it appears that the parties have a firm plan for completing discovery in the requested 60-day time period. Mot. for Extension 3-5.

While I am mindful of the 150-day discovery period in the Commission’s regulations, I note that this case, like many of the Commission’s recent cases, implicates tens of thousands of shipments and so necessarily involves large discovery volumes. The parties appear to be working productively and cooperatively towards completion of discovery, and in the interest of building an adequate record for decision, I find that there is good cause to **GRANT** the joint motion to extend. I encourage the parties to provide me with any necessary subpoenas for signature as soon

as possible to ensure that delays in service do not impact the schedule. The status report due **May 29, 2026** should detail the progress of discovery, any technical or logistical challenges related to completing discovery, and any unresolved disputes or other incomplete discovery. The parties are **ORDERED** to follow this amended schedule:

May 29, 2026	Fact depositions end; joint status report due
June 30, 2026	Expert reports due
July 31, 2026	Rebuttal expert reports due; expert depositions begin
August 24, 2026	Discovery closed
September 7, 2026	Meeting to discuss joint prehearing statement must be held by this date; exhibits must be exchanged by this date
September 28, 2026	Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due
TBD	I will set the date for the prehearing conference after receiving the joint prehearing statement

**ALEX
CHINTELLA**

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ALEX CHINTELLA
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Alex M. Chintella
Administrative Law Judge